

TENTATIVE RULINGS for LAW and MOTION

September 2, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Cotner v. Singh**
 Case No. CV2023-1742

Hearing Date: **September 2, 2026** **Department Thirteen** **9:00 a.m.**

On the Court's own motion, defendant Gurnam Singh's motion for leave to reopen discovery and motion for leave of court for an independent neuropsychological examination of plaintiff Sydney Cotner are **CONTINUED** to **November 4, 2026**, at 9:00 a.m. in Department Thirteen.

TENTATIVE RULING

Case: **Round Hill Orchards, LLC v. Bone**
 Case No. CV2026-0942

Hearing Date: **September 2, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Strode v. Ewing**
 Case No. CV2022-1460

Hearing Date: **September 2, 2026** **Department Fourteen** **9:00 a.m.**

The petitioner, Beatriz Strode, and the claimant, James “Jimmy” W. Strode, are **DIRECTED TO APPEAR** (in person or by Zoom). (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: Ulyott v. Elve, Inc.
Case No. CV2026-0598

Hearing Date: September 2, 2026 **Department Fourteen** **9:00 a.m.**

Demurrer:

Defendants Elve, Inc. and Diana Gamzina’s request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court’s determination of the demurrer. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendants’ demurrer as to the first cause of action (retaliation in violation of Whistleblower Protection) is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the first amended complaint (“FAC”) does not state facts sufficient for this cause of action. (Lab. Code, § 110.2, subd. (b); FAC, ¶¶ 27-38.) Specifically, defendants have not shown that plaintiff Colin Ulyott fails to allege: (1) a protected disclosure; or (2) a reasonable belief that the information disclosed a violation of state or federal statute. (*People ex rel. Garcia-Brower v. Kolla's, Inc.* (2023) 14 Cal.5th 719, 726 & 734; *Contreras v. Green Thumb Produce, Inc.* (2025) 116 Cal.App.5th 1251, 1259-1260; see FAC, ¶¶ 23, 31.)

Defendants’ demurrer as to the second cause of action (wrongful termination in violation of public policy) is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the Court’s ruling as to the first cause of action, defendants have not established that the FAC does not state facts sufficient for this cause of action. (Ps & As, p. 9.)

Defendants’ demurrer as to the third cause of action (breach of covenant of good faith and fair dealing) and fourth cause of action (breach of contract) are **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the contract attached to the FAC, plaintiff has not sufficiently alleged that defendants breached a term of the contract. (See *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1388; FAC, ¶¶ 17 & 56-61, Exhibit A, §§ 2.7, 7.4.) Specifically, section 2.7 of the parties’ contract defines “cause” – it does not require defendants to provide 30 days’ notice before a termination based on “neglect or persistent unsatisfactory performance.” (FAC, ¶ 17, Exhibit A, § 2.7.) As plaintiff’s third cause of action is based on the failure to provide 30 days’ notice, this cause of action also fails. (FAC, ¶¶ 48-54.)

Defendants’ demurrer as to the fifth cause of action (intentional interference with contract) is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) “[C]orporate agents and employees acting for and on behalf of a corporation cannot be held liable for inducing a breach of the corporation’s contract.” (*Mintz v. Blue Cross of California* (2009) 172 Cal.App.4th 1594, 1604, citation and quotation marks omitted; *Shoemaker v. Myers* (1990) 52 Cal.3d 1, 24.) As plaintiff alleges that defendant Diana Gamzina is the founder and CEO of Elve, Inc, she cannot be held liable for interfering with plaintiff and Elve, Inc.’s contract. (FAC, ¶¶ 3, 14.) As there is no reasonable possibility that plaintiff can amend the complaint to state this cause of action against Gamzina, the Court declines to permit leave to amend. (See *Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486 [“If it is

reasonably possible that plaintiff can cure a defective complaint by amendment, or that the pleading liberally construed can state a cause of action, the trial court should not sustain a demurrer without leave to amend”].)

Plaintiff may file an amended complaint by no later than **September 14, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

The Case Management Conference is continued to **December 7, 2026**, at 9:00 am in Department 14 at 9:00 a.m. The parties shall file CMC Statements pursuant to the Rules of Court and shall include a detailed discovery plan and ADR plan.